

Court No. - 40

Case :- WRIT - C No. - 28052 of 2023

Petitioner :- Akash Gupta

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Fatma Khatoon

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Surendra Singh-I,J.

On the request of learned counsel for the petitioner, put up this matter as fresh day after tomorrow for enabling him to serve copy of the writ petition upon learned counsel for Electricity Department.

Order Date :- 22.8.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 28052 of 2023

Petitioner :- Akash Gupta

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Fatma Khatoon

Counsel for Respondent :- C.S.C.,Usha Kiran

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for the State respondent nos.1 and 2 and Ms. Usha Kiran, learned counsel for respondent nos.3 to 6.
2. By means of this petition the petitioner has sought direction to the respondent no.4 to give electricity connection to the petitioner during the pendency of the case before the Civil Judge (Junior Division), Kanpur Nagar.
3. Petitioner claims to be a tenant and is living in portion of premises bearing No.117/N12 A-One market Kakadeo, Kanpur Nagar. It is further claimed that petitioner has applied for new electricity connection in the premises in his name and thereafter, an inspection of the premises was also carried out by the respondent authorities but till date connection has not been provided to the petitioner.
4. Admittedly, the electricity connection is sought by the petitioner being tenant. It is worth to mention that supply of electricity monopolized by U. P. Power Corporation is essential for life and it is impossible to live without electricity and the same cannot be negated. The Division Bench of this Court in Writ C No.28295/2014 (**Seema Mansoor vs. U.P. Power Corporation Ltd. and others**) has held that an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord. It is further observed that from the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord. Thus, it is clear that the application of the petitioner can always be considered as per Clause 4.4 read with Annexure 4.2 and Annexure 4.3 of Electricity Supply Code 2005, which provides either for consent letter of owner of the premises or in the absence thereof indemnity bond is to be furnished by the lessee/tenant or occupier of the premises.
5. Considering the facts and circumstances of the case, no useful

purpose would be served in keeping the writ petition pending consideration.

6. The writ petition is disposed of asking the respondent/competent authority to consider the application of petitioner, if not yet done, in accordance with law and take appropriate decision in four weeks period but certainly after hearing the parties having stake in the matter.

Order Date :- 20.9.2023

RKP